

		Although discovery sanctions are typically meted out sparingly or in an incremental approach (<i>Dep't of Forestry & Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Defendants and their counsel are willful, to the detriment of Plaintiff, and that multiple informal attempts to resolve the issues were not successful due to Defendants' refusal to respond or participate. (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal. App. 4th 377, 390.) In addition to the above, as prior monetary sanctions and the responses to requests for admission being deemed as admitted did not dissuade Defendants from additional discovery abuses, the court finds the request for terminating sanctions to be appropriate here. Plaintiff's request the court strike Defendant's answer is GRANTED. Plaintiff's request for additional monetary sanctions against both Defendants and their counsel of record is also granted in the reduced and reasonable amount of \$2,077.40 (\$500/hr. x 4 hrs. + \$60 fee + \$17.40 mileage) as the motion itself was not particularly complicated. Monetary sanctions are due within 15 days of written notice of the ruling. The court orders that Defendant's answer is hereby struck. Plaintiff's counsel is ordered to give notice of the ruling, and to prepare a request for entry of default which the court will sign upon receipt. <i>Plaintiff's counsel to give notice.</i>
8.	Tapia v. The Regents of the University of California 24-1446222	Before the Court is the continued hearing on the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.) Plaintiff's counsel asserted in the Motion only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) Although it appears that Plaintiff then belatedly submitted some responses, her counsel failed to file any reply or declaration demonstrating that this had occurred. Both sides failed to inform the Court that any responses had belatedly been provided. In light of claims made by Plaintiff's counsel at the prior hearing, the Motion was continued to 7/2/26. Counsel for both sides were directed to file a Joint Statement by 6/26/26, along with any "individual declarations." The "Joint Statement" filed on 6/26/26 addresses what Defendant Regents of the University of California perceives to be

		defects in those responses, while Plaintiff's counsel asserts that the responses overall reflect substantial compliance. But the only copies of the belated responses which have been presented to the Court, as attached to the Leaf Decl. at Exs. 1-6, show only <i>unverified</i> responses, which do not demonstrate substantial compliance. The Motion is therefore DENIED. <i>Counsel for Defendant Regents of the University of California is to give notice of this ruling.</i>
9.	Tran v. Coshov 25-1530606	(Moot)
10.	Soteropoulos v. FCA US LLC 24-1492568	(Withdrawn)
11.	Druckrey v. Mercury Insurance Company 25-1494934	Before the Court is a demurrer and motion to strike filed by defendant California Automobile Insurance Company, erroneously sued as Mercury Insurance Company (Defendant) directed to the second amended complaint (SAC) of plaintiffs Craig Druckrey and Christine Druckrey (collectively, Plaintiffs). The demurrer is OVERRULED. The motion to strike is GRANTED WITH 20 DAYS LEAVE TO AMEND. Motion 1: Demurrer A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) "[A]llegations which assert such a claim must show that the conduct of the defendant, whether or not it also constitutes a breach of a consensual contract term, demonstrates a failure or refusal to discharge contractual responsibilities, prompted not by an honest mistake, bad judgment or negligence but rather by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement." (<i>Id.</i> at 1395.) Plaintiffs have adequately pleaded a claim for breach of the covenant of good faith and fair dealing. The SAC alleges Defendant confirmed coverage for the loss, but initial payments were "limited and facially insufficient" to repair the extensive damage to the Subject Property. (SAC ¶ 16.) The SAC alleges Defendant's own consultant informed Plaintiffs they could not complete repairs for the amount paid by Defendant and only after Plaintiffs retained a public adjusting company to assist them did Defendant concede the initial estimates were inaccurate. (See SAC ¶¶ 18-19.) While Plaintiffs allege Defendant issued supplemental payments, they also allege "after the supplemental payment on November 15, 2023, Defendant's pattern of undervaluing the loss and delays in payment continued." (SAC ¶ 20.) The SAC shows the delays and underpayments continued for two years, and that Defendant failed to issue a promised supplemental payment of \$77,098.46. (See SAC ¶¶ 21-30.)